

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3
4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS RELATED TO THE FOOD STAMP
5 PROGRAM TO ALIGN THE PROGRAM WITH FEDERAL TERMINOLOGY AND PRACTICE; PROVIDING A
6 STATUTORY APPROPRIATION FOR SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM FEDERAL
7 FUNDS RECEIVED; PROVIDING THAT THE FUNDS BE USED TO PROVIDE ELECTRONIC BENEFIT
8 TRANSFER CARDS TO LOW-INCOME PERSONS TO PURCHASE FOOD; AMENDING SECTIONS 17-7-
9 502, 39-71-118, 40-4-215, 53-2-201, 53-2-211, 53-2-606, 53-2-901, 53-2-902, 53-2-903, AND 53-3-115, MCA;
10 REPEALING SECTION 53-2-904, MCA; PROVIDING AN EFFECTIVE DATE."

11
12 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

13

14 **Section 1.** Section 17-7-502, MCA, is amended to read:

15 **"17-7-502. Statutory appropriations -- definition -- requisites for validity.** (1) A statutory
16 appropriation is an appropriation made by permanent law that authorizes spending by a state agency without
17 the need for a biennial legislative appropriation or budget amendment.

18 (2) Except as provided in subsection (4), to be effective, a statutory appropriation must comply with
19 both of the following provisions:

20 (a) The law containing the statutory authority must be listed in subsection (3).

21 (b) The law or portion of the law making a statutory appropriation must specifically state that a
22 statutory appropriation is made as provided in this section.

23 (3) The following laws are the only laws containing statutory appropriations: 2-17-105; 5-11-120; 5-
24 11-407; 5-13-403; 5-13-404; 7-4-2502; 7-4-2924; 7-32-236; 10-1-108; 10-1-1202; 10-1-1303; 10-2-603; 10-2-
25 807; 10-3-203; 10-3-310; 10-3-312; 10-3-314; 10-3-316; 10-3-802; 10-3-1304; 10-4-304; 10-4-310; 15-1-121;
26 15-1-142; 15-1-143; 15-1-218; 15-1-2302; 15-31-165; 15-31-1004; 15-31-1005; 15-35-108; 15-36-332; 15-37-
27 117; 15-39-110; 15-65-121; 15-70-128; 15-70-131; 15-70-132; 15-70-433; 16-11-119; 16-11-509; 17-3-106; 17-
28 3-212; 17-3-222; 17-3-241; 17-6-101; 17-6-214; 17-7-133; 17-7-215; 18-11-112; 19-3-319; 19-3-320; 19-6-410;

1 19-9-702; 19-13-604; 19-17-301; 19-18-512; 19-19-305; 19-19-506; 19-20-604; 19-20-607; 19-21-203; 20-3-
 2 369; 20-7-1709; 20-8-107; 20-9-250; 20-9-534; 20-9-622; [20-15-328]; 20-26-617; 20-26-1503; 22-1-327; 22-3-
 3 116; 22-3-117; [22-3-1004]; 23-4-105; 23-5-306; 23-5-409; 23-5-612; 23-7-301; 23-7-402; 30-10-1004; 37-43-
 4 204; 37-50-209; 37-54-113; 39-71-503; 41-5-2011; 42-2-105; 44-4-1101; 44-4-1506; 44-12-213; 44-13-102; 50-
 5 1-115; 53-1-109; 53-2-901; 53-6-148; 53-9-113; 53-24-108; 53-24-206; 60-5-530; 60-11-115; 61-3-321; 61-3-
 6 415; 67-1-309; 69-3-870; 69-4-527; 75-1-1101; 75-5-1108; 75-6-214; 75-11-313; 75-26-308; 76-13-150; 76-13-
 7 151; 76-13-417; 76-17-103; 77-1-108; 77-2-362; 80-2-222; 80-4-416; 80-11-518; 80-11-1006; 81-1-112; 81-1-
 8 113; 81-2-203; 81-7-106; 81-7-123; 81-10-103; 82-11-161; 85-20-1504; 85-20-1505; [85-25-102]; 87-1-603;
 9 87-5-909; 90-1-115; 90-1-205; 90-1-504; 90-6-331; and 90-9-306.

10 (4) There is a statutory appropriation to pay the principal, interest, premiums, and any costs or fees
 11 associated with issuing, paying, securing, redeeming, or defeasing all bonds, notes, or other obligations, as due
 12 in the ordinary course or when earlier called for redemption or defeased, that have been authorized and issued
 13 pursuant to the laws of Montana. Agencies that have entered into agreements authorized by the laws of
 14 Montana to pay the state treasurer, for deposit in accordance with 17-2-101 through 17-2-107, as determined
 15 by the state treasurer, an amount sufficient to pay the principal and interest as due on the bonds or notes have
 16 statutory appropriation authority for the payments. (In subsection (3): pursuant to sec. 10, Ch. 360, L. 1999, the
 17 inclusion of 19-20-604 terminates contingently when the amortization period for the teachers' retirement
 18 system's unfunded liability is 10 years or less; pursuant to sec. 73, Ch. 44, L. 2007, the inclusion of 19-6-410
 19 terminates contingently upon the death of the last recipient eligible under 19-6-709(2) for the supplemental
 20 benefit provided by 19-6-709; pursuant to sec. 5, Ch. 383, L. 2015, the inclusion of 85-25-102 is effective on
 21 occurrence of contingency; pursuant to sec. 6, Ch. 423, L. 2015, the inclusion of 22-3-116 and 22-3-117
 22 terminates June 30, 2025; pursuant to sec. 4, Ch. 122, L. 2017, the inclusion of 10-3-1304 terminates
 23 September 30, 2025; pursuant to sec. 1, Ch. 213, L. 2017, the inclusion of 90-6-331 terminates June 30, 2027;
 24 pursuant to sec. 10, Ch. 374, L. 2017, the inclusion of 76-17-103 terminates June 30, 2027; pursuant to secs.
 25 11, 12, and 14, Ch. 343, L. 2019, the inclusion of 15-35-108 terminates June 30, 2027; pursuant to sec. 1, Ch.
 26 408, L. 2019, the inclusion of 17-7-215 terminates June 30, 2029; pursuant to secs. 1, 2, 3, Ch. 139, L. 2021,
 27 the inclusion of 53-9-113 terminates June 30, 2027; pursuant to sec. 8, Ch. 200, L. 2021, the inclusion of 10-4-
 28 310 terminates July 1, 2031; pursuant to secs. 3, 4, Ch. 404, L. 2021, the inclusion of 30-10-1004 terminates

June 30, 2027; pursuant to sec. 5, Ch. 548, L. 2021, the inclusion of 50-1-115 terminates June 30, 2025; pursuant to secs. 5 and 12, Ch. 563, L. 2021, the inclusion of 22-3-1004 is effective July 1, 2027; pursuant to sec. 1, Ch. 20, L. 2023, sec. 2, Ch. 20, L. 2023, and sec. 3, Ch. 20, L. 2023, the inclusion of 81-1-112, 81-1-113, and 81-7-106 terminates June 30, 2029; pursuant to sec. 9, Ch. 44, L. 2023, the inclusion of 15-1-142 terminates December 31, 2025; pursuant to sec. 10, Ch. 47, L. 2023, the inclusion of 15-1-2302 terminates June 30, 2025; pursuant to sec. 2, Ch. 374, L. 2023, the inclusion of 10-3-802 terminates June 30, 2031; pursuant to sec. 12, Ch. 558, L. 2023, the inclusion of 20-9-250 terminates December 31, 2029; pursuant to sec. 4, Ch. 621, L. 2023, the inclusion of 22-1-327 terminates July 1, 2029; pursuant to sec. 24, Ch. 722, L. 2023, the inclusion of 17-7-133 terminates June 30, 2027; pursuant to sec. 10, Ch. 758, L. 2023, the inclusion of 44-4-1506 terminates June 30, 2027; and pursuant to sec. 10, Ch. 764, L. 2023, the inclusion of 15-1-143 terminates December 31, 2025.)"

Section 2. Section 39-71-118, MCA, is amended to read:

"39-71-118. Employee, worker, volunteer, volunteer firefighter, and volunteer emergency care provider defined -- election of coverage. (1) As used in this chapter, the term "employee" or "worker" means:

(a) each person in this state, including a contractor other than an independent contractor, who is in the service of an employer, as defined by 39-71-117, under any appointment or contract of hire, expressed or implied, oral or written. The terms include aliens and minors, whether lawfully or unlawfully employed, and all of the elected and appointed paid public officers and officers and members of boards of directors of quasi-public or private corporations, except those officers identified in 39-71-401(2), while rendering actual service for the corporations for pay. Casual employees, as defined by 39-71-116, are included as employees if they are not otherwise covered by workers' compensation and if an employer has elected to be bound by the provisions of the compensation law for these casual employments, as provided in 39-71-401(2). Household or domestic employment is excluded.

(b) any juvenile who is performing work under authorization of a district court judge in a delinquency prevention or rehabilitation program;

(c) a person who is receiving on-the-job vocational rehabilitation training or other on-the-job training under a state or federal vocational training program, whether or not under an appointment or contract of

1 hire with an employer, as defined in 39-71-117, and, except as provided in subsection (7), whether or not
2 receiving payment from a third party. However, this subsection (1)(c) does not apply to students enrolled in
3 vocational training programs, as outlined in this subsection, while they are on the premises of a public school or
4 community college.

5 (d) an aircrew member or other person who is employed as a volunteer under 67-2-105;

6 (e) a person, other than a juvenile as described in subsection (1)(b), who is performing community
7 service for a nonprofit organization or association or for a federal, state, or local government entity under a
8 court order, or an order from a hearings officer as a result of a probation or parole violation, whether or not
9 under appointment or contract of hire with an employer, as defined in 39-71-117, and whether or not receiving
10 payment from a third party. For a person covered by the definition in this subsection (1)(e):

11 (i) compensation benefits must be limited to medical expenses pursuant to 39-71-704 and an
12 impairment award pursuant to 39-71-703 that is based upon the minimum wage established under Title 39,
13 chapter 3, part 4, for a full-time employee at the time of the injury; and

14 (ii) premiums must be paid by the employer, as defined in 39-71-117(3), and must be based upon
15 the minimum wage established under Title 39, chapter 3, part 4, for the number of hours of community service
16 required under the order from the court or hearings officer.

17 (f) an inmate working in a federally certified prison industries program authorized under 53-30-
18 132;

19 (g) a volunteer firefighter as described in 7-33-4109 or a person who provides ambulance services
20 under Title 7, chapter 34, part 1;

21 (h) a person placed at a public or private entity's worksite pursuant to 53-4-704. The person is
22 considered an employee for workers' compensation purposes only. The department of public health and human
23 services shall provide workers' compensation coverage for recipients of cash assistance, as defined in 53-4-
24 201, or for participants in the ~~food stamp~~ supplemental nutrition assistance program, as defined in 53-2-902,
25 who are placed at public or private worksites through an endorsement to the department of public health and
26 human services' workers' compensation policy naming the public or private worksite entities as named insureds
27 under the policy. The endorsement may cover only the entity's public assistance participants and may be only
28 for the duration of each participant's training while receiving cash assistance or while participating in the ~~food~~

1 ~~stamp supplemental nutrition assistance~~ program under a written agreement between the department of public
2 health and human services and each public or private entity. The department of public health and human
3 services may not provide workers' compensation coverage for individuals who are covered for workers'
4 compensation purposes by another state or federal employment training program. Premiums and benefits must
5 be based upon the wage that a probationary employee is paid for work of a similar nature at the assigned
6 worksite.

7 (i) subject to subsection (11), a member of a religious corporation, religious organization, or
8 religious trust while performing services for the religious corporation, religious organization, or religious trust, as
9 described in 39-71-117(1)(d); and

10 (j) a member of the army national guard or air national guard while performing state military duty
11 as defined in 10-1-1003.

12 (2) The terms defined in subsection (1) do not include a person who is:

13 (a) performing voluntary service at a recreational facility and who receives no compensation for
14 those services other than meals, lodging, or the use of the recreational facilities;

15 (b) performing services as a volunteer, except for a person who is otherwise entitled to coverage
16 under the laws of this state. As used in this subsection (2)(b), "volunteer" means a person who performs
17 services on behalf of an employer, as defined in 39-71-117, but who does not receive wages as defined in 39-
18 71-123.

19 (c) serving as a foster parent, licensed as a foster care provider in accordance with 52-2-621, and
20 providing care without wage compensation to no more than six foster children in the provider's own residence.
21 The person may receive reimbursement for providing room and board, obtaining training, respite care, leisure
22 and recreational activities, and providing for other needs and activities arising in the provision of in-home foster
23 care.

24 (d) performing temporary agricultural work for an employer if the person performing the work is
25 otherwise exempt from the requirement to obtain workers' compensation coverage under 39-71-401(2)(r) with
26 respect to a company that primarily performs agricultural work at a fixed business location or under 39-71-
27 401(2)(d) and is not required to obtain an independent contractor's exemption certificate under 39-71-417
28 because the person does not regularly perform agricultural work away from the person's own fixed business

1 location. For the purposes of this subsection, the term "agricultural" has the meaning provided in 15-1-

2 101(1)(a).

3 (3) With the approval of the insurer, an employer may elect to include as an employee under the
4 provisions of this chapter a volunteer as defined in subsection (2)(b) or a volunteer firefighter as defined in 7-
5 33-4510.

6 (4) (a) If the employer is a partnership, limited liability partnership, sole proprietor, or a member-
7 managed limited liability company, the employer may elect to include as an employee within the provisions of
8 this chapter any member of the partnership or limited liability partnership, the owner of the sole proprietorship,
9 or any member of the limited liability company devoting full time to the partnership, limited liability partnership,
10 proprietorship, or limited liability company business.

11 (b) In the event of an election, the employer shall serve upon the employer's insurer written notice
12 naming the partners, sole proprietor, or members to be covered and stating the level of compensation coverage
13 desired by electing the amount of wages to be reported, subject to the limitations in subsection (4)(d). A
14 partner, sole proprietor, or member is not considered an employee within this chapter until notice has been
15 given.

16 (c) A change in elected wages must be in writing and is effective at the start of the next quarter
17 following notification.

18 (d) All weekly compensation benefits must be based on the amount of elected wages, subject to
19 the minimum and maximum limitations of this subsection (4)(d). For premium ratemaking and for the
20 determination of the weekly wage for weekly compensation benefits, the electing employer may elect an
21 amount of not less than \$900 a month and not more than 1 1/2 times the state's average weekly wage.

22 (5) (a) If the employer is a quasi-public or a private corporation or a manager-managed limited
23 liability company, the employer may elect to include as an employee within the provisions of this chapter any
24 corporate officer or manager exempted under 39-71-401(2).

25 (b) In the event of an election, the employer shall serve upon the employer's insurer written notice
26 naming the corporate officer or manager to be covered and stating the level of compensation coverage desired
27 by electing the amount of wages to be reported, subject to the limitations in subsection (5)(d). A corporate
28 officer or manager is not considered an employee within this chapter until notice has been given.

(c) A change in elected wages must be in writing and is effective at the start of the next quarter following notification.

(d) For the purposes of an election under this subsection (5), all weekly compensation benefits must be based on the amount of elected wages, subject to the minimum and maximum limitations of this subsection (5)(d). For premium ratemaking and for the determination of the weekly wage for weekly compensation benefits, the electing employer may elect an amount of not less than \$200 a week and not more than 1 1/2 times the state's average weekly wage.

(6) Except as provided in Title 39, chapter 8, an employee or worker in this state whose services are furnished by a person, association, contractor, firm, limited liability company, limited liability partnership, or corporation, other than a temporary service contractor, to an employer, as defined in 39-71-117, is presumed to be under the control and employment of the employer. This presumption may be rebutted as provided in 39-71-117(3).

(7) (a) A student currently enrolled in an elementary, secondary, or postsecondary educational institution who is participating in work-based learning activities and who is paid wages by the educational institution or business partner is the employee of the entity that pays the student's wages for all purposes under this chapter.

(b) An elementary or secondary student who is not paid wages by the business partner or the educational institution in which the student is enrolled is a volunteer for whom coverage must be provided. The business partner and the educational institution shall mutually determine and agree in writing whether the business partner or the educational institution shall elect coverage for the student.

(8) For purposes of this section, an "employee or worker in this state" means:

(a) a resident of Montana who is employed by an employer and whose employment duties are primarily carried out or controlled within this state;

(b) a nonresident of Montana whose principal employment duties are conducted within this state on a regular basis for an employer;

(c) a nonresident employee of an employer from another state engaged in the construction industry, as defined in 39-71-116, within this state; or

(d) a nonresident of Montana who does not meet the requirements of subsection (8)(b) and whose

1 employer elects coverage with an insurer that allows an election for an employer whose:

- 2 (i) nonresident employees are hired in Montana;
- 3 (ii) nonresident employees' wages are paid in Montana;
- 4 (iii) nonresident employees are supervised in Montana; and
- 5 (iv) business records are maintained in Montana.

6 (9) An insurer may require coverage for all nonresident employees of a Montana employer who do

7 not meet the requirements of subsection (8)(b) or (8)(d) as a condition of approving the election under

8 subsection (8)(d).

9 (10) (a) An ambulance service not otherwise covered by subsection (1)(g) or a paid or volunteer

10 nontransporting medical unit, as defined in 50-6-302, in service to a town, city, or county may elect to include as

11 an employee within the provisions of this chapter a volunteer emergency care provider who serves public safety

12 through the ambulance service not otherwise covered by subsection (1)(g) or the paid or volunteer

13 nontransporting medical unit. The ambulance service or nontransporting medical unit may purchase workers'

14 compensation coverage from any entity authorized to provide workers' compensation coverage under plan No.

15 1, 2, or 3 as provided in this chapter.

16 (b) If there is an election under subsection (10)(a), the employer shall report payroll for all

17 volunteer emergency care providers for premium and weekly benefit purposes based on the number of

18 volunteer hours of each emergency care provider, but no more than 60 hours, times the state's average weekly

19 wage divided by 40 hours.

20 (c) An ambulance service not otherwise covered by subsection (1)(g) or a paid or volunteer

21 nontransporting medical unit, as defined in 50-6-302, may make a separate election to provide benefits as

22 described in this subsection (10) to a member who is either a self-employed sole proprietor or partner who has

23 elected not to be covered under this chapter, but who is covered as a volunteer emergency care provider

24 pursuant to subsection (10)(a). When injured in the course and scope of employment as a volunteer emergency

25 care provider, a member may instead of the benefits described in subsection (10)(b) be eligible for benefits at

26 an assumed wage of the minimum wage established under Title 39, chapter 3, part 4, for 2,080 hours a year. If

27 the separate election is made as provided in this subsection (10), payroll information for those self-employed

28 sole proprietors or partners must be reported and premiums must be assessed on the assumed weekly wage.

(d) A volunteer emergency care provider who receives workers' compensation coverage under this section may not receive disability benefits under Title 19, chapter 17, if the individual is also eligible as a volunteer firefighter.

(e) An ambulance service not otherwise covered by subsection (1)(g) or a nontransporting medical unit, as defined in 50-6-302, that does not elect to purchase workers' compensation coverage for its volunteer emergency care providers under the provisions of this section shall annually notify its volunteer emergency care providers that coverage is not provided.

(f) (i) The term "volunteer emergency care provider" means a person who is licensed by the board of medical examiners as provided in Title 50, chapter 6, part 2, and who serves the public through an ambulance service not otherwise covered by subsection (1)(g) or a paid or volunteer nontransporting medical unit, as defined in 50-6-302, in service to a town, city, or county.

(ii) The term does not include a volunteer emergency care provider who serves an employer as defined in 7-33-4510.

(g) The term "volunteer hours" means the time spent by a volunteer emergency care provider in the service of an employer or as a volunteer for a town, city, or county, including but not limited to training time, response time, and time spent at the employer's premises.

(11) The definition of "employee" or "worker" in subsection (1)(i) is limited to implementing the administrative purposes of this chapter and may not be interpreted or construed to create an employment relationship in any other context."

Section 3. Section 40-4-215, MCA, is amended to read:

"40-4-215. Investigations and reports. (1) If a parent or a court-appointed third party requests, or if the court finds that a parenting proceeding is contested, the court may order an investigation and report concerning parenting arrangements for the child. The investigator may be the child's guardian ad litem or other professional considered appropriate by the court. The department of public health and human services may not be ordered to conduct the investigation or draft a report unless the person requesting the investigation is a recipient of cash assistance, as defined in 53-4-201, or a participant in the food-stamp-supplemental nutrition assistance program, as defined in 53-2-902, and all reasonable options for payment of the investigation, if

1 conducted by a person not employed by the department, are exhausted. The department may consult with any
2 investigator and share information relevant to the child's best interests. The cost of the investigation and report
3 must be paid according to the final order. The cost of the educational evaluation under subsection (2)(a) must
4 be paid by the state as provided in 3-5-901.

5 (2) The court shall determine, if appropriate, the level of evaluation necessary for adequate
6 investigation and preparation of the report, which may include one or more of the following:

7 (a) parenting education;

8 (b) mediation pursuant to 40-4-301;

9 (c) factfinding by the investigator; and

10 (d) psychological evaluation of the parties.

11 (3) In preparing a report concerning a child, the investigator may consult any person who has
12 information about the child and the child's potential parenting arrangements. Upon order of the court, the
13 investigator may refer the child to professional personnel for diagnosis. Except as required for children 16 years
14 of age or older, the investigator may consult with and obtain information from medical, psychiatric, or other
15 expert persons who have served the child in the past without obtaining the consent of the persons or entities
16 authorized by law to grant or withhold access to the records. The child's consent must be obtained if the child is
17 16 years of age or older unless the court finds that the child lacks mental capacity to consent. If the
18 requirements of subsection (4) are fulfilled, the investigator's report may be received in evidence at the hearing.

19 (4) The investigator shall mail the investigator's report to counsel and to any party not represented
20 by counsel at least 10 days prior to the hearing. When consistent with state and federal law, the investigator
21 shall make available to counsel and to any party not represented by counsel the investigator's file of underlying
22 data and reports, complete texts of diagnostic reports made to the investigator pursuant to the provisions of
23 subsection (3), and the names and addresses of all persons whom the investigator has consulted. Any party to
24 the proceeding may call the investigator and any person the investigator has consulted for cross-examination. A
25 party may not waive the right of cross-examination prior to the hearing. The results of the investigation must be
26 included in the court record and may, without objection, be sealed."

27
28 **Section 4.** Section 53-2-201, MCA, is amended to read:

1 **"53-2-201. Powers and duties of department.** (1) The department shall:

2 (a) administer and supervise public assistance, including the provision of ~~food stamps~~ the
3 supplemental nutrition assistance program, food commodities, cash assistance and nonfinancial assistance, as
4 defined in 53-2-902, energy assistance, weatherization, vocational rehabilitation, services for persons with
5 severe disabilities, developmental disability services, medical care payments in behalf of recipients of public
6 assistance, employment and training services for recipients of public assistance, and other programs as
7 necessary to strengthen and preserve families;

8 (b) give consultant service to private institutions providing care for adults who are needy, indigent,
9 or dependent or who have disabilities;

10 (c) cooperate with other state agencies and develop provisions for services to the blind, including
11 the prevention of blindness, the location of blind persons, medical services for eye conditions, and vocational
12 guidance and training of the blind;

13 (d) organize and supervise the local offices of public assistance in an efficient and economical
14 manner;

15 (e) assist and cooperate with other state and federal departments, bureaus, agencies, and
16 institutions, when requested, by performing services in conformity with public assistance purposes;

17 (f) administer all state and federal funds allocated to the department for public assistance and do
18 all things necessary, in conformity with federal and state law, for the proper fulfillment of public assistance
19 purposes;

20 (g) make rules governing payment for services and supplies provided to recipients of public
21 assistance; and

22 (h) adopt rules regarding assignment of monetary and medical support upon application for cash
23 assistance, as defined in 53-2-902, and related medical assistance.

24 (2) The department may:

25 (a) purchase, exchange, condemn, as provided in Title 70, chapter 30, or receive by gift either real
26 or personal property that is necessary to carry out its public assistance functions. Title to property obtained
27 under this subsection must be taken in the name of the state of Montana for the use and benefit of the
28 department.

1 (b) contract with the federal government to carry out its public assistance functions and comply
2 with requirements for receiving federal aid and assistance; and

3 (c) make rules, consistent with state and federal law, establishing the amount, scope, and duration
4 of services to be provided to recipients of public assistance."
5

6 **Section 5.** Section 53-2-211, MCA, is amended to read:

7 **"53-2-211. Department to share eligibility data.** (1) The department shall make available to the
8 unemployment compensation program of the department of labor and industry all information contained in its
9 files and records pertaining to eligibility of persons for medicaid, cash assistance and nonfinancial assistance,
10 as defined in 53-2-902, and ~~food stamps~~ supplemental nutrition assistance program benefits. The information
11 made available must include information on the amount and source of an applicant's income. The information
12 received from the department must be used by the department of labor and industry for the purpose of
13 determining fraud, abuse, or eligibility for benefits under the unemployment compensation program of the state
14 and for no other purpose.

15 (2) The department shall make available to the unemployment compensation and workers'
16 compensation programs of the department of labor and industry all information contained in its files and records
17 pertaining to eligibility of persons for low-income energy assistance and weatherization. The information made
18 available must include information on the amount and source of an applicant's income. The information
19 received from the department must be used by the department of labor and industry for the purpose of
20 determining fraud, abuse, or eligibility for benefits under the unemployment compensation and workers'
21 compensation programs of the state and for no other purpose.

22 (3) (a) Subject to federal restrictions, the department may request information from the department
23 of labor and industry pertaining to unemployment, workers' compensation, and occupational disease benefits. If
24 the department of labor and industry discovers evidence relating to fraud or abuse for unemployment, workers'
25 compensation, or occupational benefits, the department of labor and industry may request information from the
26 department of revenue pertaining to income as provided in 15-30-2618(8)(b).

27 (b) The information must be used by the department for the purpose of determining fraud, abuse,
28 or eligibility for benefits.

(4) The department may, to the extent permitted by federal law, make available to an agency of the state or to any other organization information contained in its files and records pertaining to the eligibility of persons for medicaid, cash assistance and nonfinancial assistance, as defined in 53-2-902, food stamps the supplemental assistance nutrition program, low-income energy assistance, weatherization, or other public assistance."

Section 6. Section 53-2-606, MCA, is amended to read:

"53-2-606. Right of appeal. (1) If an application for assistance for ~~food stamps~~ the supplemental nutrition assistance program, cash assistance or nonfinancial assistance, as defined in 53-2-902, or medicaid is not acted upon promptly or if a decision is made by which the applicant or recipient is aggrieved, the applicant or recipient may appeal to the board of public assistance for a fair hearing by addressing a request for a hearing to the department. The board of public assistance shall, upon receipt of a request for a hearing, give the applicant or recipient prompt notice and opportunity for a fair hearing.

(2) The department may upon its own motion review any decision of a local office of public assistance and may consider any application upon which a decision has not been made within a reasonable time from the filing of the decision. The department may have an additional eligibility determination made and shall determine whether and in what amount assistance is to be granted under the provisions of this title.

(3) If the department reviews a decision on its own motion, applicants or recipients affected by the decisions of the department must upon request be given reasonable notice and an opportunity for a fair hearing by the board of public assistance."

Section 7. Section 53-2-901, MCA, is amended to read:

"53-2-901. Administration of ~~food stamp~~ supplemental nutrition assistance program -- rulemaking authority -- statutory appropriation. (1) The department is authorized to administer the ~~food stamp~~ supplemental nutrition assistance program in compliance with all federal laws and requirements.

(2) There is an account in the federal special revenue fund for federal funds received to provide benefits that can be used to purchase food through the supplemental nutrition assistance program electronic benefit transfer card system. The funds in the account are statutorily appropriated, as provided in 17-7-502, to

1 the department for the supplemental nutrition assistance program electronic benefit transfer card system.

2 ~~(2)(3)~~ The department shall adopt rules that are necessary and desirable for the administration of the
3 ~~food-stamp~~ supplemental nutrition assistance program.

4 ~~(3)(4)~~ The department shall adopt rules that may include but are not limited to rules concerning:

5 (a) eligibility for assistance, including income and resource limitations, income and resource
6 exclusions, and transfers of resources;

7 (b) amounts of assistance and methods for determining benefit amount;

8 (c) periodic redetermination of eligibility;

9 (d) reporting requirements;

10 (e) work registration, employment, and training requirements and exemptions from those
11 requirements;

12 (f) procedures and policies of the employment and training program;

13 (g) disqualification because of intentional program violations, for voluntarily quitting a job without
14 good cause, or for any other violation of program rules; and

15 (h) penalties applicable to recipients of cash assistance who have been sanctioned because of
16 failure to meet any requirement of that program.

17 ~~(4)(5)~~ The department may adopt rules that include but are not limited to rules concerning:

18 (a) requirements for recipients to assign the right of support;

19 (b) requirements for recipients to cooperate with the state agency administering the child support
20 enforcement program established under Title IV-D of the Social Security Act, 42 U.S.C. 651, et seq.; and

21 (c) disqualification for failure to perform actions required by other means-tested programs, for
22 failure to cooperate with the state agency administering the child support enforcement program under Title IV-D
23 of the Social Security Act, 42 U.S.C. 651, et seq., or for failure to pay court-ordered child support as provided in
24 sections 819, 822, and 823 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996, 7
25 U.S.C. 2015."
26

27 **Section 8.** Section 53-2-902, MCA, is amended to read:

28 **"53-2-902. Definitions.** As used in this part, the following definitions apply:

(1) "Cash assistance" means the programs designed to provide families with monthly cash grants and opportunities leading to self-support and funded, in part, with temporary assistance for needy families block grant funds as provided in 45 CFR 260.31(a).

(2) "Department" means the department of public health and human services provided for in 2-15-2201.

~~(3) "Food stamp program" means the provision of food stamp benefits that can be used to purchase food to low-income persons pursuant to the Food Stamp Act Amendments of 1980, 7 U.S.C. 2011, et seq.~~

~~(4)(3)~~ "Nonfinancial assistance" means the programs funded, in part, with temporary assistance for needy families, as provided in 45 CFR 260.31(b).

(4) "Supplemental nutrition assistance program" means the program to alleviate hunger and malnutrition established pursuant 7 U.S.C. 2011, et seq.

(5) "Supplemental nutrition assistance program electronic benefit transfer card" means the system established pursuant to 7 U.S.C. 2016 to provide electronic benefit transfer cards to low-income persons to purchase food under the supplemental nutrition assistance program.

~~(5)(6)~~ "Temporary assistance for needy families" means the block grant established pursuant to 42 U.S.C. 601, et seq."

Section 9. Section 53-2-903, MCA, is amended to read:

"53-2-903. Employment and training program. The department shall establish and administer an employment and training program for ~~food stamp~~ supplemental nutrition assistance program recipients that is in compliance with federal requirements."

Section 10. Section 53-3-115, MCA, is amended to read:

"53-3-115. Legislative findings. (1) The legislature finds that in order to use the limited resources of the state for the purposes of providing public assistance to persons whom it has determined are in need, certain programs must be eliminated and the provision of public assistance programs must be reorganized for more efficient delivery of services.

(2) The legislature finds that county governments are in the best position to efficiently and effectively deliver services for those in need who are not otherwise eligible for similar services provided by the department of public health and human services.

(3) (a) The legislature finds that the needs of persons who are aged, infirm, or misfortunate are adequately and appropriately provided for through the following programs:

(i) medicaid;

(ii) cash assistance, as defined in 53-2-902;

(iii) ~~food stamps~~ the supplemental nutrition assistance program;

(iv) commodities; and

(v) low-income energy assistance.

(b) The legislature further finds that the counties may in their discretion provide other programs of public assistance that they determine are appropriate and that may be funded with money derived from a county mill levy.

(4) The legislature finds that the effects of eliminating the state program of general relief are not known and that the administration and financing of public assistance programs by each county may not provide uniform assistance throughout the state."

NEW SECTION. **Section 11. Repealer.** The following section of the Montana Code Annotated is repealed:

53-2-904. Income and resource exclusions -- FAIM participants.

NEW SECTION. **Section 12. Effective date.** [This act] is effective July 1, 2025.

- END -